



Republic of the Philippines  
**MUNICIPALITY OF PRIETO DIAZ**

Prieto Diaz, Sorsogon 4711

LGU TIN: 000794065

Email Address: [sbprietodiaz@gmail.com](mailto:sbprietodiaz@gmail.com)



**Office of the Secretary to the Sangguniang Bayan**

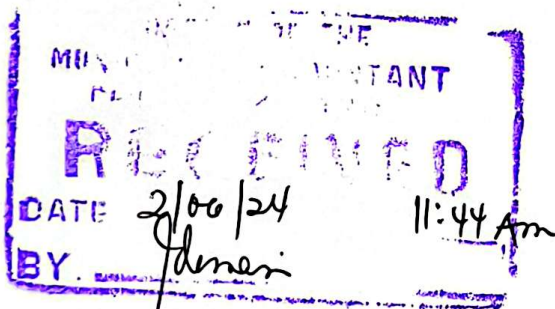
1st Endorsement  
February 5, 2024

SB 006 02062024 038  
OFFICE OF THE SANGGUNIANG BAYAN  
PRIETO DIAZ, SORSOGON 4711

**RELEASED**

DATE: 02062024 TIME: 11:30 AM  
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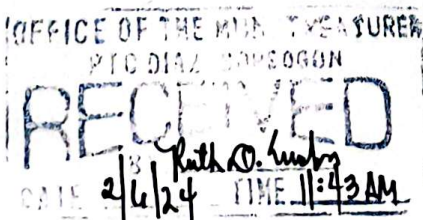
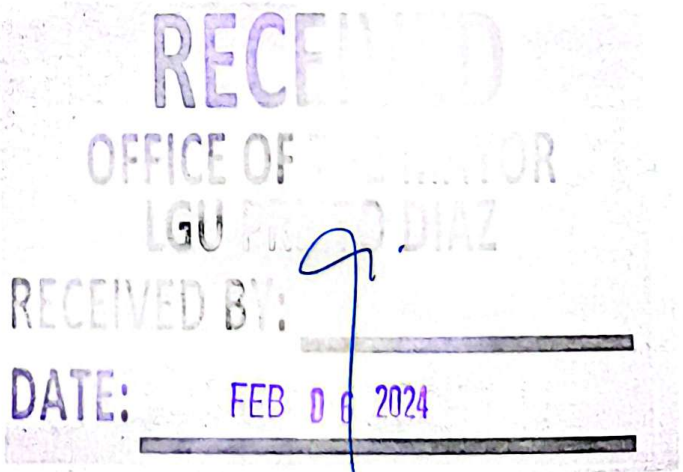
Respectfully transmitted to the **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 019-2024 entitled: **"A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH WIRELESS ACCESS FOR HEALTH INITIATIVE, INC. (WAH-NGO), REPRESENTED BY MS. JEANETTE A. LAZATIN, MD, MPM, TREASURER, FOR THE PROVISION AND MAINTENANCE OF ELECTRONIC MEDICAL RECORDS AT THE OFFICE OF THE MUNICIPAL HEALTH OFFICER (OMHO) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for his information and appropriate action.



**BERNADETTE R. ESPEÑA – YAO**  
Secretary to the Sangguniang Bayan

Cc:

- Dr. Jenifer Bernaldez  
MHO
- Ms. Gemma Ferrer  
Municipal Treasurer
- Ms. Maribel Aldon  
Municipal Accountant





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## Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11<sup>TH</sup> SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 22, 2024 AT ITS SESSION HALL

### PRESENT:

|                              |                                        |
|------------------------------|----------------------------------------|
| Hon. Avon D. Domalaon, MPA   | Municipal Vice Mayor/Presiding Officer |
| Hon. Jo Madel D. Domalaon    | S. B. Member                           |
| Hon. Bienvenido D. Ayo, Jr.  | -do-                                   |
| Hon. Luis Lee E. Espeña, Jr. | -do-                                   |
| Hon. Alice D. Emano          | -do-                                   |
| Hon. Rodolfo E. Diolata      | -do-                                   |
| Hon. Juan D. Ebid            | -do-                                   |
| Hon. Albert D. Destura       | -do-                                   |
| Hon. Antonio J. Emano, Jr.   | LnB Pres. /S. B. Member                |
| Hon. Rene Joseph D. Domasian | PPSK Pres. /S. B. Member               |

### ABSENT:

None

## RESOLUTION NO. 019-2024

Introduced by Hon. Alice Emano

**A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH WIRELESS ACCESS FOR HEALTH INITIATIVE, INC. (WAH-NGO), REPRESENTED BY MS. JEANETTE A. LAZATIN, MD, MPM, TREASURER, FOR THE PROVISION AND MAINTENANCE OF ELECTRONIC MEDICAL RECORDS AT THE OFFICE OF THE MUNICIPAL HEALTH OFFICER (OMHO) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON**

WHEREAS, endorsed by the Municipal Mayor to the Sangguniang Bayan is the said MOA for its consideration;

WHEREAS, Wireless Access for Health Initiative, Inc., or WAH-NGO is an NGO, an institutional partner of the Philhealth and the DOH in implementing Republic Act No. 11223 otherwise known as the Universal Health Care (UHC) law by providing quality digital health solutions to health care institutions (HCIs), allowing these to comply with Philhealth benefits claims transactions like the electronic claims (e-claims) and the konsulta package and the DOH's electronic health reporting programs like the field health service information system (FHSIS), integrated tuberculosis information system (ITIS), national anti-rabies information (NARIS), among others;



WHEREAS, prior or during the adoption and on-boarding, the HCIP/LGU must settle a one-time adoption/installation fee amounting to twenty thousand pesos (P 20,000.00); and the annual subscription fee of P 60,000-P 114,000 may be charged for the adoption, installation, and maintenance of the system, which can be charged to Philhealth Health Care Institution Fund, which may be remitted quarterly or annually;

WHEREAS, the lock-in period of the said agreement is three (3) years, plus the months preceding the next immediate calendar year;

WHEREAS, the said endeavor is seen to be very beneficial to the LGU in terms of providing accessible electronic medical records to the MHO, and is seen to earn income for the LGU;

WHEREAS, upon motion of Hon. Juan Ebid, duly seconded by Hon. Albert Destura;

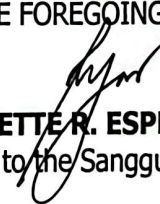
NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Agreement with Wireless Access for Health Initiative, Inc. (WAH-NGO), represented by Ms. Jeanette A. Lazatin, MD, MPM, Treasurer, for the provision and maintenance of electronic medical records at the Office of the Municipal Health Officer (OMHO) in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor, copy furnished Dr. Jenifer Bernaldez, MHO; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.

  
**BERNADETTE R. ESPEÑA-YAO**  
Secretary to the Sangguniang Bayan

ATTESTED:

  
**Hon. AVON D. DOMALAON, MPA**  
Municipal Vice Mayor/Presiding Officer

## MEMORANDUM OF AGREEMENT

This Agreement is made and entered into this \_\_\_\_\_ day of \_\_\_\_\_ 2024  
at Talar City by and between:

**WIRELESS ACCESS FOR HEALTH INITIATIVE, INC.**, a non-governmental organization and digital health solutions and technology Service Provider duly organized and existing under and by virtue of the laws of the Philippines, with principal office address at Diwa ng Talar, Romulo Boulevard, San Vicente, Talar City, Philippines, represented herein by: **JEANETTE A. LAZATIN, MD, MPM**, in her capacity as Treasurer, hereinafter referred to as **WAH-NGO**;

- AND -

**PRIETO DIAZ RURAL HEALTH UNIT** is a Health Care Institution (HCI) duly organized and existing under and by virtue of the laws of the Philippines, with principal office address at Brgy. Rizal, Prieto Diaz, Sorsogon, represented herein by **HON. ROMEO D. DOMASIAN, PhD** Municipal Mayor of Prieto Diaz, hereinafter referred to as "**HCI PARTNER OR HCIP**".

Henceforth collectively known as the "**PARTNERS**".

### WITNESSETH THAT:

**WHEREAS**, the **WAH-NGO** is an institutional partner to the **Philippine Health Insurance Corporation or PhilHealth** and the **Department of Health or DOH** in implementing Republic Act 11223 otherwise known as the **Universal Health Care (UHC) Law** by providing quality digital health solutions to Health Care Institutions (HCIs), allowing these to comply with PhilHealth benefits claims transactions like the **Electronic Claims (e-Claims)** and the **Konsulta Package** and the **DOH's** electronic health reporting programs like the **Field Health Service Information System (FHSIS)**, **Integrated Tuberculosis Information System (ITIS)**, **National Anti-Rabies Information System (NARIS)**, among others;

**WHEREAS**, **WAH-NGO** is one of the select few third-party service providers duly authorized, accredited and licensed by **PhilHealth** to engage with HCIs for the purpose of providing them access to **PhilHealth's** claims and reimbursements web-service and utility framework through the **WAH-NGO's "Digital Health Platform" Software**;

**WHEREAS**, **WAH-NGO**, is the sole and only technology and service provider for the **Wireless Access for Health** digital health platform known as **WAH-Intermion** that features **DOH-approved** and **PhilHealth-validated** modules/systems as well as other prominent patient-, **LGU-**, and end-user-focused features;

**WHEREAS**, **WAH-NGO** and the **HCI PARTNER**, in fulfilling their duty as a partner to **PhilHealth** and the **DOH** must comply with various legal pronouncements governing the implementation of the **Philippine Health Information Exchange or PHIE** and the validation of **Electronic Medical/Health Recording Systems (EMR/EMR)** such as **DOH Administrative Orders (AO) 2011-010, 2017-0024 and 2021-0035**; **PhilHealth Advisories 11-01-2015, 2016-0040, and 2016-0041**; **Circulars 2016-13 and 2017-0030**; and **DOH, PhilHealth, and Department of Science and Technology (DOST) Joint AO 2016-001, 2016-002, 2017-0027 and 2021-0020**;

**WHEREAS**, **HCI PARTNER**, in adherence to these **DOH** and **PhilHealth** regulations to connect to the **PHIE** (and **PhilHealth Server**) must send **QUALITY** electronic patient and health data for program reporting (**DOH FHSIS**, etc.) and claims reimbursements (**PhilHealth e-Claims** and **Konsulta**) and therefore decided to connect with and engage the expertise and services of the **WAH-NGO** by adopting and installing in its health facility the **"WAH Digital Health Platform" Software**;



WHEREAS, WAH-NGO, with support from its principal benefactor, the Provincial Government of Tarlac (PGT), has agreed to assist the HCIP and provide guidance and services on digital health recording and reporting as prescribed by PhilHealth and the DOH subject to the mutual obligations set forth under the terms and conditions of this Agreement.

NOW, THEREFORE, for and in consideration of the foregoing premises and the mutual covenants, conditions and obligations outlined hereinafter in the Memorandum of Agreement: Fundamental Provisions and further set forth in the General Terms and Conditions with accompanying Annexes, the PARTNERS hereby agree as follows:

#### MEMORANDUM OF AGREEMENT: FUNDAMENTAL PROVISIONS

1. **EFFECTIVITY, TERM:** This Agreement shall commence on \_\_\_\_\_ and shall be effective until December 31, 2027.
2. **LOCK-IN PERIOD:** Three (3) years (plus the months preceding the next immediate calendar year).
3. **RENEWAL and TERMINATION:** The Agreement can either be renewed or terminated accordingly through a written notice by a partner as early as one hundred twenty (120) days prior to expiration. This will give the partners ample time to prepare and agree on a new MOA or prepare for the legal termination of the Agreement. Unless a new Agreement is signed thirty (30) days prior to the expiration, the MOA is deemed due for termination and WAH shall commence the de-listing process of the facility from its roster of partners.
4. **PRE-TERMINATION:** Either of the partner can pre-terminate this Agreement. The WAH-NGO can terminate this Agreement if it finds the HCIP violating the terms and conditions of this Agreement especially those on data privacy and confidentiality, Digital Health Scorecards, and the WAH-NGO Financial Guidelines. On the part of the HCIP, it can opt out of the Agreement anytime for reason/s it so chooses by paying a pre-termination fee of Fifty Thousand Pesos (P50,000.00) and settling all outstanding dues and interest (if there is any) it owes the WAH-NGO.
5. **ANNUAL SUBSCRIPTION FEES, BILLING PERIOD:** All expenses for the adoption, installation, and maintenance of the system can be charged to PhilHealth Health Care Institution Fund. For this Agreement, the HCIP is expected to pay an estimated amount of Sixty Thousand Pesos to One Hundred Fourteen Thousand Pesos (P60,000.00 – P114,000.00) annually to be remitted on a quarterly or annual basis. This amount will vary depending on the facility's number of PhilHealth accredited-programs and number and types of premium services availed.
6. **PERFORMANCE COMMITMENT:** The HCIP and its staff are expected to perform their role in achieving the targets agreed on health financing (PhilHealth) and DOH-compliance reporting as stipulated in the Performance and Target and Commitment (see attachment). In return, the WAH-NGO, by virtue of its commitment to quality recording/reporting and excellence, shall monitor closely the performance of the HCIP and its staff and report its findings to the signatories of this MOA.
7. **OTHER FEES, PENALTIES AND INTERESTS:** Prior or during the adoption and on-boarding, the HCIP must settle a one-time adoption/installation fee amounting to TWENTY THOUSAND PESOS (PHP20,000.00). As may be required from time to time, HCIP must also allocate funds for training, on-site monitoring, cluster meeting expenses, etc. HCIP will be given ample time to settle financial dues (usually max of 60 days). However, penalties and interests will apply accordingly as indicated in the WAH-NGO Financial Guidelines (see attachment).

MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WIRELESS ACCESS FOR HEALTH



ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)  
CITY OF Tarlac) S.S.

At Tarlac City, Philippines, on this \_\_\_\_\_ day of \_\_\_\_\_ personally appeared  
before me the following persons with their respective proof of identification, to with:

| Name                                                                             | Proof of Identification    | Place & Date of Issue |
|----------------------------------------------------------------------------------|----------------------------|-----------------------|
| HON. ROMEO D. DOMASIAN, PhD<br>Local Government Unit of Prieto Diaz,<br>Sorsogon |                            |                       |
| JEANETTE A. LAZATIN, MD, MPM<br>Wireless Access for Health                       | PRC License No.<br>0074550 | Manila<br>01/09/1992  |

Known to me as the same persons who executed the foregoing instrument and they  
acknowledged before me that the same is their free and voluntary act and deed and that of the  
corporation they represent. This document refers to a Memorandum of Agreement containing a  
total of four (4) pages including this page where the acknowledgment is written, **MOA: General  
Terms and Conditions** and the **Annexes** and signed by the partners and their instrumental  
witnesses at the left hand margin of each and every page hereof.

IN WITNESS WHEREOF, I have hereunto affixed my signature and notarial seal this \_\_\_\_\_  
day of \_\_\_\_\_, at \_\_\_\_\_.

Doc. No. \_\_\_\_\_;  
Page No. \_\_\_\_\_;  
Book No. \_\_\_\_\_;  
Series of \_\_\_\_\_.